

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 9, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, JULY 9, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, JULY 8, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0096239 ROCKLIN SIERRA APARTMENTS v. TATE, TREYVON

Status Conference re: Appointment of Counsel

Appearances of the parties are required at the hearing.

2. S-CV-0049211 FERRIERA, DANIELLE v. ANDERSON MERCHANDISE

The motion for final approval is continued to **Tuesday, August 11, 2026, at 8:30 a.m.** in **Department 32** to be heard by the **Honorable Trisha J. Hirashima**.

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3. S-CV-0051662 MARMOL, RUVIM v. AMERICAN HONDA MOTOR

Defendant's Motion for Summary Judgment, or in the Alternative, Summary Adjudication

Preliminary Matters

Both parties objections are overruled in their entirety.

The court observes defendant's separate statement in support of its motion does not comply with California Rules of Court, Rule 3.1350 because it does separately identify "each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. Rules of Court, rule 3.1350, subd. (d).) The court admonishes defendant to adhere to the applicable California Rules of Court for future filings.

Ruling on Motion

Defendant moves for summary judgment or, in the alternative, summary adjudication as to plaintiff's complaint. A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the "plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense." (*Ibid.*) Pursuant to the "golden rule" of summary judgments, "if it is not set forth in the separate statement, it does not exist." (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

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First Cause of Action—Violation of Civil Code Section 1793.2,
Subdivision (d) and Fourth Cause of Action—Breach of Express
Written Warranty

A cause of action for violation of Civil Code section 1793.2, subdivision (d) and breach of express written warranty requires plaintiff to establish “(1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element).” (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101.)

Here, defendant meets its initial burden to show plaintiff cannot establish the first element because there was no nonconformity with plaintiff’s vehicle. (UMF Nos. 17, 21–24.) The burden therefore shifts to plaintiff to raise a triable issue of material fact. Plaintiff thereafter meets his burden to raise a triable issue of material fact that his vehicle contained nonconformities. (Disputed MF Nos. 23–24.)

However, defendant does not meet its initial burden as to the third element because plaintiff presented the vehicle at least two times regarding a check engine light issue that defendant thereafter failed to repair. (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 799.)

Accordingly, defendant’s motion for summary adjudication is denied as to the first and fourth causes of action.

Second Cause of Action—Violation of Civil Code Section 1793.2,
Subdivision (b)

Civil Code section 1793.2, subdivision (b) requires that any good shall be served or repaired within 30 days. (Civ. Code, § 12793.2, subd. (b).)

Here, defendant meets its burden to establish that no services or repairs took longer than 30 days. (UMF No. 26.) The burden therefore shifts to plaintiff to raise a triable issue of material fact that a repair took longer than 30 days. Plaintiff, however, does not meet his burden to raise a triable issue of material fact.

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Accordingly, defendant's motion for summary adjudication is granted as to the second cause of action.

Third Cause of Action—Violation of Civil Code Section 1793.2,
Subdivision (a)(3)

Civil Code section 1793.2, subdivision (a)(3) requires defendant to "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code, § 1793.2, subd. (a)(3).)

Here, defendant meets its burden to establish it had sufficient literature and replacement parts to effect repairs during the express warranty period. (UMF No. 27.) The burden therefore shifts to plaintiff to raise a triable issue of material fact. Plaintiff thereafter meets his burden to raise a triable issue of material fact that defendant failed to have sufficient literature and replacement parts to effect repairs during the express warranty period. (Disputed MF No. 27.)

Accordingly, defendant's motion for summary adjudication is denied as to the third cause of action.

Fifth Cause of Action—Breach of Implied Warranty of
Merchantability

A breach of implied warranty of merchantability requires plaintiff to establish the vehicle is not fit for the ordinary purposes for which the vehicle is used. (*Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 878. Unlike a breach of express warranty, however, a breach of implied warranty of merchantability does not require the plaintiff to "the defective vehicle to an authorized representative of the manufacturer for repair and give the manufacturer a reasonable opportunity to fix the vehicle." (*Ibid.*)

Here, defendant meets its initial burden to show plaintiff cannot establish the vehicle is not fit for the ordinary purposes for which the vehicle is used. (UMF Nos. 17, 21–24.) The burden therefore shifts to plaintiff to raise a triable issue of material fact. Plaintiff thereafter meets his burden to raise a triable issue of material fact that his vehicle was not fit for the ordinary purposes for which it was used. (Disputed MF Nos. 23–24.)

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Accordingly, defendant's motion for summary adjudication is denied as to the fifth cause of action.

In sum, the motion for summary adjudication is granted as to the second cause of action and denied as to the first, third, fourth, and fifth causes of action. Thus, the motion for summary judgment is denied because defendant did not establish it was entitled to judgment as a matter of law.

4. S-CV-0051680 HOLMAN, JASMINE v. PETSMART

Proposed Intervenors Edward Ruffin and Jaimie Grayson's Motion to Intervene

Preliminary Matters

Defendant's objections are overruled.

Defendant's request for judicial notice is granted. Plaintiff's request for judicial notice is denied.

Ruling on Motion

Proposed intervenors Edward Ruffin and Jaimie Grayson move to intervene pursuant to the mandatory, and alternatively the permissive, intervention procedures found in Code of Civil Procedure sections 387, subdivisions (d)(1) and (2).

The mandatory intervention statute provides "The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: (A) A provision of law confers an unconditional right to intervene. (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (Code Civ. Proc., § 387, subd. (d)(1).)

On the other hand, the permissive intervention statute provides: "The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code Civ. Proc., § 387, subd. (d)(2).)

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Here, proposed intervenors cannot establish a right to intervene by either statute. First, there is no provision of law that confers an unconditional right to intervene. Second, proposed intervenors do not have an interest in the action. (*Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664, 680; *Moniz v. Adecco USA, Inc.* (2025) 109 Cal.App.5th 317, 330–35.)

The court also notes that proposed intervenors advance arguments about their right to intervene as potential class members. However, their complaint in intervention only asserts PAGA claims and proposed intervenors do not present any authority that intervention is proper where it is based on both class and PAGA claims.

Accordingly, proposed intervenors’ motion to intervene is denied.

Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(s); *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully reviewed and considered the Joint Stipulation of Class Action and PAGA Settlement and plaintiff’s moving papers filed in connection with the motion. The court determines a sufficient showing has been made that the class action settlement is fair, reasonable, genuine, meaningful, and adequate. The court also determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class as defined on page 3, paragraph b of the Joint Stipulation of Class Action and PAGA Settlement. The court preliminarily approves the Joint Stipulation of Class Action and PAGA Settlement and Class Notice. The court approves the proposed form of the notice, and incorporates by reference the findings and orders outlined in the proposed order lodged with the court on April 21, 2026.

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The final approval hearing is set for **Thursday, December 10, 2026, at 8:30 a.m.** in **Department 3**.

5. S-CV-0052420 ARGHANDEWAL, MIRIAM v. CHIPOTLE MEXICAN

Non-Party Timur Safi’s Motion to Quash Subpoena and Motion to Sanctions

Non-party Timur Safi moves to quash defendant Chipotle Mexican Grill’s deposition subpoena for personal appearance and production of documents and things issued to him on March 2, 2026. (Code Civ. Proc., § 1987.1.)

California Rules of Court, Rule 3.1345 requires “any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement” and specifically includes a motion “To compel or to quash the production of documents or tangible things at a deposition.” (Cal. Rules of Court, rule 3.1345, subd. (a)(5).)

Here, non-party Timur Safi moved to quash the production of documents at a deposition. Yet, his motion was not accompanied by a separate statement as required. Nor did non-party Timur Safi attach the deposition subpoena or include the document requests in full to his moving papers, declarations filed in support of the motion, or reply papers.

Accordingly, the motion to quash subpoena is denied. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 892.)

Non-party Timur Safi and defendant Chipotle Mexican Grill’s request for sanctions are denied. (Code Civ. Proc., § 1987.2, subd. (a).)

6. S-CV-0053661 JACO, JOSHUA v. FCA US

Plaintiff’s Motion to Determine the Amount of Reasonable Attorney’s Fees, Costs and Expenses to be Paid by Defendant

Plaintiff’s motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover

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“attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because he achieved his litigation objectives and the parties stipulated to plaintiff’s recovery of reasonable attorney’s fees.

Defendant does not challenge this. Accordingly, the court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of “showing that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’ ” ” ” ”

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoices attached as Exhibit 4 to the declaration of Nicolas M. Dillavou. The court observes instances where the attorneys and paralegals have insufficiently explained the work performed, instances where the work appears to be duplicative or unnecessary to the prosecution of the causes of action, instances of block billing, and instances where an excessive number of hours are billed for what should be relatively straight-forward tasks. The court determines that 27.2 hours are reasonable for Nicolas Dillavou, 0 hours are reasonable for Jon Jacobs, 1 hour is reasonable for Joshua Youssefi, 2.9 hours are reasonable for Christine Morano, 4 hours are reasonable for Anna Costello, 3.2 hours are reasonable for Lisa Tyler, 2.5 hours are reasonable for Sierra Jacobs, 1.5 hours are reasonable for Andrew Zazzi, 2.5 hours are reasonable for Jessica Djenane, 0.4 hours are reasonable for Inigo Gatus, and 3 hours are reasonable for “Additional Wrap Up Fees” which the court understands are the hours billed by Nicolas Dillavou for drafting the motion for attorney’s fees.

The court must next address whether the requests for \$745 per hour by Nicolas Dillavou, \$945 per hour by Jon Jacobs, \$745 per hour by Joshua Youssefi, \$495 per hour by Christine Morano, \$250 per hour by Anna Costello, \$250 per hour by Lisa

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Tyler, \$250 per hour by Sierra Jacobs, \$250 per hour by Andrew Zazzi, \$250 per hour by Jessica Djenane, \$250 per hour by Inigo Gatus, and \$745 per hour for “Additional Wrap Up Fees” which the court understands are the requested hourly fee by Nicolas Dillavou are reasonable. Determining the reasonable amount of attorneys’ fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, “[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement.” (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$350 per hour by Nicolas Dillavou, \$350 per hour by Jon Jacobs, \$350 per hour by Joshua Youssefi, \$300 per hour by Christine Morano, \$150 per hour by Anna Costello, \$150 per hour by Lisa Tyler, \$150 per hour by Sierra Jacobs, \$150 per hour by Andrew Zazzi, \$150 per hour by Jessica Djenane, \$150 per hour by Inigo Gatus, and \$350 per hour for “Additional Wrap Up Fees” which the court understands are the requested hourly fee by Nicolas Dillavou are reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$13,905 for attorney’s fees and \$797.49 for costs for a total amount of \$14,702.49.

7. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

Plaintiff/Cross-Defendant’s Demurrer to Defendants/Cross-Complainants’ Cross-Complaint

Appearances of the parties are required at the hearing. Remote appearance is not authorized.

The parties shall be prepared to answer questions from the court addressing the February 19 good faith meet and confer process in light of both a First and Second Amended Cross-Complaint on file with the court and plaintiff/cross-defendant’s counsel’s deficient meet and confer efforts despite explicit instructions from the court in its June 18, 2026, tentative ruling.

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8. S-CV-0056181 AMERICREDIT FINANCIAL SVS. v. FELKER, JEREMY

The writ of possession hearing is dropped from calendar as no moving papers were filed with the court.

9. S-CV-0057858 HATAMI, JULIE v. HARTFORD, JOHN

Plaintiffs/Judgment Creditors' Application for Order for Sale of Dwelling, and Adjacent Vacant Lot

Plaintiffs/judgment creditors apply for an order for sale of dwelling and adjacent vacant lot. Code of Civil Procedure section 704.750 provides the timing requirements for such an application as follows

Promptly after a dwelling is levied upon (other than a dwelling described in subdivision (b) of Section 704.740), the levying officer shall serve notice on the judgment creditor that the levy has been made and that the property will be released unless the judgment creditor complies with the requirements of this section. Service shall be made personally or by mail. Within 20 days after service of the notice, the judgment creditor shall apply to the court for an order for sale of the dwelling and shall file a copy of the application with the levying officer. If the judgment creditor does not file the copy of the application for an order for sale of the dwelling within the allowed time, the levying officer shall release the dwelling.

(Code Civ. Proc., § 704.750, subd. (a).)

Here, there is insufficient evidence that the dwelling at issue was levied on, a levying officer served defendant/judgment debtor with notice of the levy, or plaintiffs/judgment creditors brought the application within 20 days of the notice of levy being served on the judgment debtor. Accordingly, plaintiffs/judgment creditors application is denied without prejudice.